



The Department of State proposes to the Embassy of Burundi the following understanding between the Government of the United States of America and the Government of Burundi (hereinafter referred to individually as a "Participant" and collectively as "Participants".)

- The Participants intend to arrange the transfer from the United States to Burundi of certain third-country nationals present in the United States. This may include third-country nationals who raise national security or public safety concerns.
- The Government of the United States of America may in its complete discretion propose to the Government of Burundi the transfer of such third-country nationals, and the Government of Burundi may in its complete discretion consider accepting such a proposal in whole or in part.
- The Government of Burundi assures the Government of the United States of America that it intends to treat any third-country

DIPLOMATIC NOTE

nationals transferred from the United States to Burundi in a manner that is in accordance with its obligations under the Convention Relating to the Status of Refugees, done at Geneva on July 28, 1951; the Protocol Relating to the Status of Refugees, done at New York on January 31, 1967; the Convention against Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment, adopted in New York on December 10, 1984; any other international legal obligations; and its national constitution, laws, regulations, and immigration and visa policies. Consistent with this intention, the Government of Burundi assures the Government of the United States of America that it would treat any third-country nationals transferred from the United States to Burundi in a manner that is in accordance with its international legal obligations and that the third-country nationals removed to Burundi would not be subjected to persecution on account of race, religion, nationality, membership in a particular social group, or political opinion or subjected to torture in Burundi or in any country to which Burundi may further transfer the third-country nationals.

- The Participants intend to develop, to the extent appropriate, operating procedures to assist with implementing this understanding.
- The Participants intend to consult to resolve any questions about interpretation or implementation of this understanding.
- Either Participant may discontinue its participation in this understanding at any time but, in such case, intends to provide written notice to the other Participant through diplomatic channels.
- Nothing in this understanding is intended to create any obligation upon the Participants to disburse or obligate funds. All actions taken under this understanding are subject to the availability of funds and the applicable laws and regulations of both Participants.

If this proposal is acceptable to the Government of Burundi, the Government of the United States of America proposes that this note, together with the affirmative reply from the Government of Burundi, would constitute an understanding between the two governments that would become effective upon the date of the Government of Burundi's reply note.

A handwritten signature in black ink, appearing to be 'Amel', written vertically.

Department of State,

Washington, December 8, 2025.

REPUBLIQUE DU BURUNDI



**MINISTERE DES AFFAIRES ETRANGERES,
DE L'INTEGRATION REGIONALE ET DE LA
COOPERATION AU DEVELOPPEMENT**

N0.204.01/019/MAEIRCD/2026

The Ministry of Foreign Affairs, Regional Integration and Development Cooperation of the Republic of Burundi presents its compliments to the Embassy of United States of America in Burundi and has the honor to refer to its Note N0.204.01/073/MAEIRCD/2026, dated January 20, 2026 and has the honor to respectfully request that the Embassy of the United States of America in Burundi consider the January 20th, 2026, Note as withdrawn and superseded by this Note.

Furthermore, the Ministry of Foreign Affairs, Regional Integration and Development Cooperation of the Republic of Burundi has the honor to refer to the U.S. Department of State's Note dated December 8th, 2025, which reads as follows:

“The Department of State proposes to the Ministry of Foreign Affairs, Regional Integration and Development Cooperation of Burundi the following understanding between the Government of the United States of America and the Government of Burundi (hereinafter referred to individually as a "Participant" and collectively as "Participants".)

- The Participants intend to arrange the transfer from the United States to Burundi of certain third-country nationals present in the United States. This may include third-country nationals who raise national security or public safety concerns.
- The Government of the United States of America may in its complete discretion propose to the Government of Burundi the transfer of such third-country nationals, and the Government of Burundi may in its complete discretion consider accepting such a proposal in whole or in part.
- The Government of Burundi assures the Government of the United States of America that it intends to treat any third-country nationals transferred from the United States to Burundi in a manner that is in accordance with its obligations under the Convention Relating to the Status of Refugees, done at Geneva on July 28, 1951; the Protocol Relating to the Status of Refugees, done at New York on January 31, 1967; the Convention against Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment, adopted in New York on December 10, 1984; any other international legal obligations; and its national constitution, laws, regulations, and immigration and visa policies. Consistent

with this intention, the Government of Burundi assures the Government of the United States of America that it would treat any third-country nationals transferred from the United States to Burundi in a manner that is in accordance with its international legal obligations and that the third-country nationals removed to Burundi would not be subjected to persecution on account of race, religion, nationality, membership in a particular social group, or political opinion or subjected to torture in Burundi or in any country to which Burundi may further transfer the third-country nationals.

- The Participants intend to develop, to the extent appropriate, operating procedures to assist with implementing this understanding.
- The Participants intend to consult to resolve any questions about interpretation or implementation of this understanding.
- Either Participant may discontinue its participation in this understanding at any time but, in such case, intends to provide written notice to the other Participant through diplomatic channels.
- Nothing in this understanding is intended to create any obligation upon the Participants to disburse or obligate funds. All actions taken under this understanding are subject to the availability of funds and the applicable laws and regulations of both Participants.”

The Ministry of Foreign Affairs, Regional Integration and Development Cooperation of the Republic of Burundi confirms that the proposal contained in the Department of State’s note is acceptable to the Government of Burundi.

The Ministry of Foreign Affairs, Regional Integration and Development Cooperation of the Republic of Burundi further stresses that, while third-country nationals proposed for transfer may include third-country nationals who raise national security or public safety concerns in the United States of America, the Government of Burundi does not intend to receive third-country nationals who have committed violent crimes.

If this proposal is acceptable to the Government of the United States of America, the Government of Burundi proposes that the U.S. Department of State’s Note dated December 8th, 2025, this Note, and the affirmative reply from the Government of the United States of America would constitute an understanding between the two governments that would become effective upon the date of the Government of the United States of America’s reply note.

The Ministry of Foreign Affairs, Regional Integration and Development Cooperation of the Republic of Burundi avails itself of this opportunity to renew to the Embassy of the United States of America in Burundi the assurances of its highest consideration.



Gitega, February 6th, 2026

EMBASSY OF THE UNITED STATES OF AMERICA

BUJUMBURA

No. 032/2026

The Embassy of the United States of America presents its compliments to the Ministry of Foreign Affairs, Regional Integration and Development Cooperation of the Republic of Burundi and has the honor to refer to the Ministry's Note N0.204.01/0119/MAEIRCD/2026, dated February 6, 2026.

The Embassy acknowledges that the Government of Burundi does not intend to receive third-country nationals who have committed violent crimes and confirms that it does not intend to propose for transfer individuals who have committed such crimes, to the extent such crimes are known to the Government of the United States of America.

Accordingly, the U.S. Department of State's Note dated December 8, 2025, the Ministry's Note N0.204.01/0119/MAEIRCD/2026, dated February 6, 2026, and this Note in reply constitute an understanding between the two governments that becomes effective upon the date of this Note.

The Embassy of the United States of America avails itself of this opportunity to renew to the Ministry of Foreign Affairs, Regional Integration and Development Cooperation of the Republic of Burundi, the assurances of its highest consideration.

Embassy of the United States of America,
Bujumbura, February 12, 2026.

